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No. 31.—VOL. I.

SATURDAY, AUGUST 2, 1884.

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## BIRD MIGRATION.

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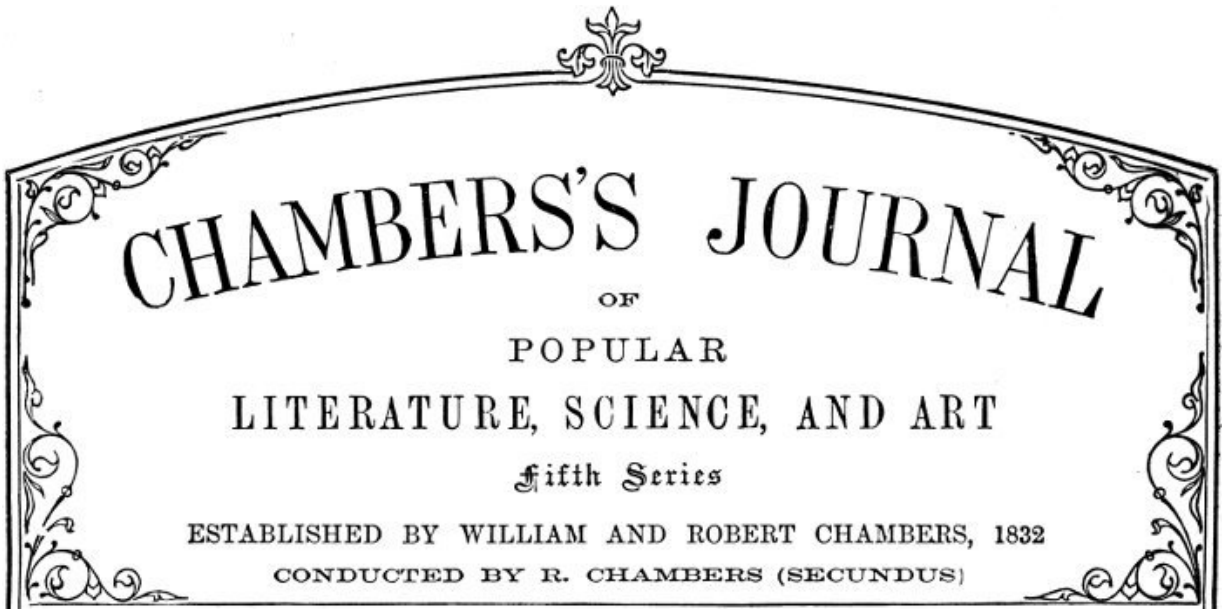
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and judging from its contents, it may reasonably be expected that the results of such investigations will become more and more important as the work proceeds.

From the returns given by the light-keepers, it would appear that birds, prior to crossing the ocean, follow closely the coast-line in their journeyings, and that during the two periods named, a continuous stream passes to and from their summer quarters, broken, it may be, by a sudden change of wind or other vicissitude of weather, and thus causing ‘throbs’ or ‘rushes,’ as they have been termed, but steady as a rule—the hereditary impulse being too powerful to admit of anything but a temporary deviation or delay on these great highways of migration.

It seems strange that while such movements are taking place, persons resident but a few miles inland may be unaware of the winged multitudes that in this way pass within a short distance of their homes. Yet a great deal of information may be gathered by close observers who are willing to visit the seacoast at daybreak about the time the birds are on the move. The present writer well remembers seeing large flights of birds of different species arriving in early spring on the shores of East Lothian for a succession of years. Among these, the swallows were conspicuous even at some distance out at sea, the main body passing northwards in undeviating flight, while numerous detachments left it and came landwards, to people the haunts in the country which they had occupied the previous year. The same was observed in the case of wheatears, redstarts, and golden-crested wrens—the last-named being particularly interesting from their tiny size. Occasionally goldcrests would come in great numbers, and immediately on alighting, would flutter in the morning sunlight among the rocks and walls near high-water mark in search of insect prey, paying no heed to the presence of any one watching their motions. Again, in the autumn months, buzzards, owls, and woodcock would arrive simultaneously, and pitch upon the rocks at low water, as if glad to touch the nearest land; and even wood-pigeons (supposed by the country folks to come from Norway), which delight only in dense woods and fertile fields, and which suddenly appear in vast numbers in severe British winters, settled in crowds upon the stony beach without any preliminary survey of the ground. Observations like these can be made on almost any part of the east of Scotland, and it is gratifying to find them verified in a remarkable degree by the returns from

the light-keepers, which not only show the closeness with which birds follow the coast-line, but also indicate the points of land from which they speed seawards in their adventurous flight. Thus, it is found that arrivals and departures take place at Spurn Point and on the coast of Forfarshire—the inference being, if the theory of a former land-communication be true, that an ancient coast-line must have extended east or north-eastward probably from Holderness to Southern Scandinavia and the mouth of the Baltic. There is also reason to believe that similar points of arrival and departure exist in the north-east of Aberdeenshire, judging from the occurrence of so many rare birds, whose presence there at the migration season can hardly otherwise be accounted for.

Among other interesting facts brought to light by the present series of investigations we find that, with very rare exceptions, young birds of the year migrate some weeks *in advance* of the parent birds, and that the appearance on our coasts in autumn of many species, such as the wheatear, fieldfare, redwing, hooded crow, goldcrest, and woodcock, may almost be predicted to a day. The punctuality, indeed, with which certain birds return to us in the fall of the year is remarkable—one species regularly taking precedence of another according to the time required for their self-dependence. Shore-birds apparently reach this stage earlier than land-birds, as it has been observed that the young of the knot, gray plover, godwit, and sanderling—birds which nest in very high latitudes, and are the last of the migrants to leave in spring—are amongst the first to come to our shores.

The most interesting of all the stations from which returns have been sent is the small rocky island of Heligoland, situated in the North Sea, about forty miles from the mouth of the Elbe. Here the tired wing of many a feathered wanderer finds a resting-place. Lying almost directly in the line of migration, the island has been periodically visited by birds in incredible numbers, many of them belonging to species of extraordinary interest. Attracted by the lighthouse, which occupies the highest point of the island, and throws out on dark nights a blaze of light ‘like a star of supreme brightness,’ many thousands of birds of all kinds pitch upon its treeless surface, where they have scarcely any shelter from the weather, and where they become at once a prey to the wants of the islanders, who capture them in vast numbers, and use them as food. Mr Cordeaux, in an interesting communication to the *Ibis* for 1875, states, that on the evening of the 6th of

November 1868, three thousand four hundred larks were captured on the lantern of the lighthouse before half-past nine o'clock; and on the same evening, subsequent to that hour, eleven thousand six hundred others were taken—making a total of fifteen thousand. For this holocaust of these charming songsters, no words of deprecation are strong enough, though their capture was probably regarded as a lawful addition to the larder of the captors, and probably such visitations had been so regarded ever since the lighthouse had begun to lure the poor creatures to an untimely fate! In this way also, no doubt, many a feathered rarity was consumed.

Fortunately for science, however, this little island has numbered amongst its resident population an observer of rare intelligence, Mr H. Gätke, whose leisure hours have been employed for nearly thirty years in registering the occurrence of the birds which have either made the rock a temporary resting-place or been seen crossing it in their migratory flight. Mr Gätke first visited Heligoland as an artist; but having secured an official appointment there, he afterwards made the island his permanent home. During the interval, he has collected and preserved with his own hands upwards of four hundred species—a collection containing examples of the avi-fauna of the four quarters of the globe. Strange as it may appear, birds have touched here whose proper homes are wide as the poles asunder—birds from the burning plains of India and the arctic lands of desolation. The Far West, too, has contributed its land and water birds; and from the barren steppes of Siberia, tiny warblers have joined the moving throng. As instances of the abundance of what are called 'British birds,' mention may be made of flights of buzzards numbering thousands which passed over the island on September 22, 1881; while flocks of equal numbers rested on the cliffs, and a 'great flight' of hooded crows, which crossed in the same direction. As for the starling—a bird which has become extraordinarily plentiful in this country during the last thirty years—it is referred to as making its appearance in a 'great rush,' which no doubt accounts for a flock, recorded some time afterwards as coming from the east, by a light-keeper on the English coast, 'estimated to contain a million starlings, making a noise like thunder, darkening the air.' All these birds were doubtless of Scandinavian origin, and had in the case of each species travelled in a compact body along the coast-line until they reached North Germany, where they had to some extent become broken up, many of the birds being induced to alter their flight westwards in the direction of the

British coasts. As a natural consequence, the earliest observers of their arrival in this country would be the light-keepers at Spurn Head on the Yorkshire coast; and the records from this station show that the buzzards and hooded crows at least, reached us from Heligoland in somewhat less than twenty-four hours.

Another important post of observation is the lighthouse on the Isle of May, in the Firth of Forth,<sup>[1]</sup> from which one of the reporters has obtained records of species of more than ordinary interest, the intelligent keeper there having sent him no fewer than seven closely filled schedules, principally referring to autumn migrations. Seventy-five species have already been identified from this station; but in addition to these, numerous entries refer to ‘small birds’ of various descriptions, regarding which and other accidental visitors, more will be known as the investigations proceed, arrangements having been made for the preservation and transmission to the mainland of all the species that occur at the station. The occurrence of the blue-throated warbler here—a very rare bird in Britain—suggests the possibility of other interesting forms being sent from this locality.

In summarising the material received, the compilers of the Report confess that the migrations of seagulls are most erratic and difficult to tabulate. In certain years, however, these are unquestionably regulated by the movements of the fish upon which they feed. The late Professor MacGillivray has recorded that, in the winter of 1837, a flock of seagulls computed to contain not short of a million birds made its appearance in the Firth of Forth; and it must be within the recollection of at least one of the reporters that in 1872-3 similar if not even greater numbers visited the firth, the most common species being the kittiwake and lesser black-backed gull. In this memorable invasion, unusual numbers of glaucous and Iceland gulls made their appearance, birds of such note among ornithologists as to be marked objects when they do occur; and the entire assemblage was suggestive of a migration controlled by the movements of fishes—the waters of the firth being at that time swarming with sprats. The ‘catches’ of the local fishermen were so heavy as to necessitate their sale at a trifling sum per cartload to the neighbouring farmers, for the purpose of manuring their fields.

There is not much, we apprehend, to be gathered from the appearance of skuas, petrels, long-tailed or ice ducks (*Harelda glacialis*), and other

species whose haunts are exclusively marine, as their occurrence inshore signifies in nearly all cases continued rough weather at some distance from land. There are no seafaring creatures, indeed, that delight more in storms than ice-ducks and petrels; for them, the huge green waves or churned masses of foam have no terrors; they are for the time being at home amid the wildest waters—the petrels on the one hand flitting silently over the turbulent billows, rising as they advance, and falling in their wake with contemptuous ease; the ducks, on the other hand, careering aloft during a sudden blast, and sounding their bagpipe-like notes, as if deriding the war of elements. Very different is the experience of the tender songsters that traverse the dreary waste of waters; sorely tried in their powers of flight, they are not unfrequently caught by adverse gales and driven hundreds of miles out of their course, to be finally swallowed by the pitiless waves.

In connection with this subject, and as bearing upon the question of former land-communications, reference may be made to an extremely interesting paper on the Migration and Habits of the Norwegian Lemming, read before the Linnæan Society of London by Mr W. D. Crotch in 1876. In this communication, Mr Crotch shows that the lemming, which is a small rat-like animal, occurring in abundance in many parts of Norway, assembles periodically, although at irregular intervals, in incredible numbers, and travels westwards until the seacoast is reached; after which, on the first calm day, the vast multitude plunges into the Atlantic Ocean, ‘and perishes, with its front still pointing westwards.’ Such a voluntary destruction in the case of a single species is perhaps nowhere else to be found in the history of migratory animals, and it seems difficult to understand how the annihilation of so many migratory hordes through a ‘suicidal routine’ should not ultimately lead to their extinction. Mr Crotch tells us that no survivor returns to the mountains; indeed, so formidable is the migration and its effects upon the poor fugitives, that we are told by Mr Collett—a Norwegian naturalist—of a ship sailing for fifteen hours through ‘a swarm of lemmings which extended as far over the Trondhjems fiord as the eye could reach.’

Mr Crotch rightly, we think, concludes that land existed in the North Atlantic Ocean at no very remote date, and that when dry land connected Norway with Greenland, the lemmings ‘acquired the habit of migrating westwards for the same reasons which govern more familiar migrations.’

The inherited tendencies, therefore, of this little creature are opposed to the so-called instinct which impels quadrupeds as well as birds to change their quarters in quest of food and warmth, unless we conclude, with Mr Crotch, that in the case of the lemming, such instinct has persistently failed in its only rational purpose.

## **BY MEAD AND STREAM.**

**BY CHARLES GIBBON.**

### **CHAPTER XL.—MADGE'S MISSION.**

THE glow of happiness on Madge's face seemed to brighten even the gloomy atmosphere outside. She had done something for Philip—something that would not only give him pleasure in the highest degree, but which he would regard as an important practical service. For she had no doubt that she would be able to convince Mr Beecham of the groundlessness of all his charges against Mr Hadleigh. Then the two men would meet; they would shake hands; all the errors and suspicions which had separated them would be cleared up, forgiven, and soon forgotten in the amity which would follow. How glad Philip would be. She was impatient to complete her good work.

Miss Hadleigh entered the room hurriedly.

‘Goodness gracious, dear, what charm have you used with papa that you have kept him so long with you? I never knew him stay so long with anybody before.’

‘The only charm used was that the subjects we had to talk about were of great interest to us both,’ Madge answered, smiling.

‘Oh, how nice.—They concerned Philip? What does he say?’

‘That we are not to pay attention to the rumours until we have definite information from Philip himself.’

‘Was that all?’ Miss Hadleigh was disappointed, and her expression of curiosity indicated that she was quite sure it was not all.

‘No,’ said Madge softly, wishful that her answer might have been more satisfactory to Miss Hadleigh.

The latter did not endeavour to conceal her surprise; but she did successfully conceal her feeling of pique that Madge should have been taken into the confidence of her father about matters of grave moment: she was sure they were so, for she had passed him on his way to the library. *She* had never been so honoured.

‘I suppose I must not ask you what the other subjects were, dear?’ she said, with one of her most gracious smiles. She meant: ‘You certainly *ought* to tell *me*.’

Madge was spared the necessity of making a reply; for Mr Hadleigh, instead of sending the promised packet, had brought it himself. When he appeared, his daughter was silent. That was generally the case; but on the present occasion the silence had an additional significance. She was struck by a peculiar change in his expression, his walk, and manner. As she afterwards told her betrothed, it quite took her breath away to see him coming into the room looking as mild as if there had never been a frown on his face. The dreamy, seeking look had vanished from his eyes, which were now fixed steadily on Madge.

‘I have brought you the memorandum, Miss Heathcote, and you are free to make what use of it you may think best.’

‘I hope to make good use of it,’ was her answer as she received a long blue envelope which was carefully sealed.

‘Of course you understand that you are at liberty to open this yourself, or in the presence of others whom you think the contents may affect.’

‘I shall first find one or two of the other letters,’ said Madge, after a moment’s reflection, ‘and then I shall place them with this packet, sealed as it is, in the hands of the gentleman it most concerns.’

‘I am satisfied. What I am most anxious about is that you yourself should be convinced. Do not forget that.’

‘I am already convinced.’ No one could doubt it who saw the bright confidence in her eyes.

‘That is all I desire; but of course it will be a pleasure to me if you succeed in convincing others. I have told them to have the carriage ready, as I thought you might be in a hurry to get home.’



‘Indeed I am; and thank you.’

Amazement as much as courtesy kept Miss Hadleigh mute until the leave-taking compelled her to utter the usual formalities. Mr Hadleigh saw Madge to the carriage, and there was a note of tenderness in his ‘Good-bye’—as if he were a father seeing his daughter start on a long journey from which she might never return.

What was the mysterious influence the girl exercised over this man? Under it he had been always different from what he appeared to be at other times; and under it he had consented to do that to which no one else, except Philip, had ever dreamt he could be persuaded.

‘I shall be glad when they are married,’ he repeated to himself as, when the carriage had disappeared, he walked slowly back to the library.

Aunt Hussy was somewhat startled when she saw the Ringsford carriage and Madge come out of it alone.

‘Is anything wrong at the Manor?’ she asked; but before she had finished the question she was reassured by the face of her niece.

‘No, aunt; but Mr Hadleigh thought I should have the carriage, as I was in a hurry. I have had a long talk with him. He has made me very happy, and has given me the power to make others happy.’

They were in the parlour now, and Aunt Hussy smiled at the excitement of the usually calm Madge.

‘Is it extra blankets and coals for the poor folk, or a Christmas feast for the children?’

‘No, no, aunt: it is something of very great importance to Philip and to me. Philip’s uncle has all these years believed that it was Mr Hadleigh who spread the false report about him; and that is why he will not agree to have anything to say to him. Now, Philip has set his heart upon making them friends, and I can do it!’

There was a brightness in the girl’s voice and manner which Aunt Hussy was glad to see after those days of pained thoughtful looks.

‘How are you to do that, child?’

‘By showing Philip’s uncle who the real traitor was. His name was Richard Towers, and Mr Hadleigh says you knew him.’

‘Richard Towers,’ echoed the dame gravely, and looking back to the troubled time calmly enough now. ‘We did know him, and we did not like him. He was one of the worst lads about the place, although come of decent people. He borrowed money from my father, and thought he could pay it back by wedding his daughter. He would not take “no” for an answer for a long time. But at last he came to see that there was no chance for him, and he spoke vile words. I do believe he was the kind of man that would take pleasure in such evil work.’

‘He did do it. I have the proof.’

‘The wonder is we never thought of it before,’ continued the dame thoughtfully; ‘but he has been gone away this many a year and is dead now. He went to California, and was shot in some drunken quarrel. Neighbour Hopkin’s lad, who was out there too, says he was lynched for robbing a comrade and trying to murder him. But these are not pleasant things to talk about. God forgive the poor man all his sins; although, if what thou ’rt saying be true, he brought sorrow enough to our door.’

That was the worst word the good woman had for the man. Then Madge, without betraying the confidence of Beecham, gave her a brief outline of her conversation with Mr Hadleigh. Aunt Hessy naturally concluded that it was Philip who had suggested that she should speak to his father, and asked no questions. With her mind full of wonder at the way in which the wicked are found out sooner or later, she went to the dairy whilst Madge wrote a hasty note to Mr Beecham. She asked simply what was the earliest hour at which she could see him.

She gave the note to young Jerry Mogridge with strict injunctions that he was to bring back an answer, no matter how long he might have to wait. Jerry promised faithful obedience, and privately hoped that he might have to wait a long time, for the taproom at the *King’s Head* was a pleasant place in which to spend a few hours.

Then Madge went to the garret, which had been a storehouse of wonders to her in childhood, for there the lumber of several generations was stowed. It was a large place, occupying nearly the whole length and breadth of the

house, with a small window at each end, and one skylight. She knew exactly where to find the oaken box she wanted, for she herself had pushed it away under the sloping roof near one of the windows. It was not a large box, and she had no difficulty in dragging it forward, so that she had the full benefit of the light. She had the key ready; but as it had not been used for years, she found it was not easy to get it to act. At length she succeeded, and raising the lid, disclosed a mass of old letters neatly tied in bundles, and old account-books ranged in order beside them.

The letters were not only neatly tied but duly docketed, so that, as Madge rapidly took out bundle after bundle, she had only to lift the tops to see from whom they had come and when. The light was failing her fast, and Aunt Hessy would on no account permit a lighted lamp or candle to be brought into the garret. She strained her eyes, and endeavoured to quicken her search. At length she found two letters, both dated in the same year—the year of her mother's marriage—and bearing the name Richard Towers. With a breath of satisfaction she drew them out from the bundle. What their contents might be did not matter: all she wanted was to secure fair specimens of the man's handwriting.

After relocking the box and thrusting it back into its place, she descended to the oak parlour. The lamp was on the table, and she lit it at once. Her first impulse was to open those letters and read them. But that would be to no purpose, as it was not in her power to compare the writing with the memorandum in the blue envelope she had received from Mr Hadleigh. Of course she was at perfect liberty to open that too, and it was natural that she should feel an inclination to do so. This feeling, however, was brief. She had decided to deliver the undoubted letters of Richard Towers and the packet with its seals unbroken. So she secured them all in one cover, which she addressed to Austin Shield. It was not to pass from her own hand except into that of the person for whom it was intended.

She had not recovered from the sense of hurry in which she had been acting, when young Jerry returned, and after fumbling in his pockets, produced a note.

‘You saw Mr Beecham, then?’ she said gladly.

‘Didn't see him at all, missy; and I thought maybe as I'd better bring that back.’ The note he gave her was her own.

‘But I told you to wait.’

‘Weren’t no sort ov use, missy. Gentleman’s gone away bag and baggage; and they say at the *King’s Head* he ain’t a-coming back no more.’

‘Did he leave no address?’

‘No what, missy?’

‘The name of any place where letters could be sent to him.’

‘O yes. I saw father: he drove him to the station, and the gentleman’s gone to London.’

This was all the information young Jerry had been able to obtain, and he regarded it as quite satisfactory. To Madge, it was disappointing; but only in so far that it delayed the completion of her mission for a few days. It was certainly strange that Mr Beecham should take his departure so suddenly without leaving any message for her; but she had no doubt that the post would bring her one.

So, now, she settled herself down to wait for Philip, and to make him glad when he came, with her news that his father had given his consent to the reconciliation.

But Philip did not visit Willowmere that night.

## ANCIENT ROCK-HEWN EDICTS.

HAVING had the good fortune, some years ago, to find myself in the grand old Indian land, in company of friends so exceptional as still to take keen interest in all matters relating to native customs and Indian antiquities, I hailed with delight their proposal that we should devote some weeks to leisurely wandering among the chief points of interest along the line of railway, and thus with ease and comfort see more of the country than many old Indians have explored in their long years of exile. One of the chief cities where we made a prolonged halt was Allahabad—that is, ‘the City of God’—now the point of junction for the railway from Bombay and from Calcutta, but dear to the natives of India as the meeting-place of the sacred rivers the Jumna and the Ganges, and consequently a very favourite place of pilgrimage, where countless multitudes annually assemble from every part of Hindustan.

Immediately above the junction of the sacred rivers stands the old fort of Allahabad, a grand mass of red sandstone, built by the great Emperor Akbar. It now contains a very large English armoury—great guns and little guns, and cannon and mortars, and all manner of weapons. Here it was that the English found refuge during the Mutiny; and our friends showed us the balcony, over-hanging the river, to which they thankfully hauled up any morsels of food or firewood brought to them by the faithful old servants, whom, however, they had been compelled to dismiss, with the rest of the native attendants, from within the walls of the fort. The mutiny in this city was very quickly crushed by the timely arrival of General Neill with his ‘Madras Lambs;’ not, however, till after one awful night, when, the doors of the jails having been broken open, three thousand miscreants were turned loose to lend their aid in burning and plundering the city. Upwards of fifty Europeans were massacred that night, including eight young cadets who had only just arrived from home. In the centre of the fort stands a very remarkable monolith, surmounted by a lion. It bears an inscription in the ancient Pali character, and is known as the Lat or Stone of Asoka, a mighty emperor who lived about 250 B.C., and who, having embraced the tenets of Buddha, inscribed his decrees on sundry great pillars which he erected in

divers cities. One of these is at the Buddhist caves of Karli, and is called the Lion-pillar. It is a sixteen-sided monolith, surmounted by four lions. Another exists at Delhi, in the ruined fort of Togluck, though it is called after Feroze, a very modern emperor, whereas Asoka was, as we have seen, a mighty prince of pre-Christian ages. His pillars are sometimes surmounted by lions, sometimes by human figures, overshadowed by the seven-headed cobra, or some other emblem of power, such as the mystic umbrella—symbolical of Buddha—of which sufficient trace remains to be recognised, though time and weather have in the course of two thousand long years worn away the distinct form. Very similar pillars are at the present day erected in Nepaul, whereon are placed statues of kings, sometimes shaded by an umbrella made of metal—and in one instance, by the serpent hood.

From the reign of Asoka, the stone architecture of India dates its origin. He is said to have left eighty-four thousand buildings of various sorts, as the marks of his footprints on Time's sands. To him is attributed the great tope at Sanchi, that mighty relic-shrine, whose huge stone portals are to this day a marvel of mythological sculpture, the details of which have now been made so familiar to us all by casts, photographs, and description (see Fergusson's *Tree and Serpent Worship*, and also the great plaster casts at the South Kensington Museum)—sculptures representing the primeval worship of sacred serpents and holy trees, and displaying wheels, umbrellas, and other symbols more particularly suggestive of the new faith—that of Buddha—which Asoka established as the religion of the state. This mighty despot having determined that the new maxims which had become binding on his own conscience should henceforth be law to his subjects, proceeded to inscribe them on stone in every corner of his dominions, that the wayfarer might read them for himself.

Thus it is that, besides finding his edicts engraven on his buildings and pillars, they are also found inscribed—as on imperishable tablets—on great rocks scattered over the country from Orissa to Peshawur. One of these huge boulders, twenty feet in height and twenty-three in circumference, lies in the lonely jungle in the district of Kathiawad in Western India. Here the emperor states, that being convinced of the iniquity of slaying living creatures, he will henceforth desist from the pleasures of the chase. Henceforth, no animal must be put to death either for meat or sacrifice; and this law, which the emperor appoints for himself, is to apply to all his

subjects, who are in future to feed only on vegetables. His protection of the brute creation applies, not only to their lives; medical care is to be provided for all living creatures, man and beast, throughout the whole empire, as far south as Ceylon. Wells were to be dug, and trees planted, that men and beasts might have shade and drink. The emperor forbids all convivial meetings, as displeasing to the gods or injurious to the reveller. He declares that he will himself set the example of abstaining from all save religious festivals. On this huge 'Junagadh Rock,' as it is called, allusion is also made to four contemporary Greek kings. The date thus obtained is proved to be about 250 B.C., which just corresponds with that of Asoka himself.

The edicts go into various other matters. They inculcate the practice of a moral law of exceeding purity; they enjoin universal charity; and bid all men strive to propagate the true creed. To this end, special missionaries were to be sent forth to the uttermost parts of the earth, to preach to rich and poor, learned and ignorant, that they might bring those 'which were bound in the fetters of sin to a righteousness passing knowledge.' Nevertheless, a liberal margin was to be allowed for diversity of opinion, and nothing savouring of religious persecution was to be tolerated. At the same time, the domestic life of the people was subject to the strictest censorship, overseers being appointed to report on every act in the life of every subject. These domestic inspectors attracted the particular attention of the Greeks who visited India in the train of Alexander the Great, who first turned the attention of Europeans to the then unknown Indian land, and pursued his career of conquest as far as the banks of the Sutlej, making himself master of the Punjab, and establishing Greek colonies at various places. These Greeks described the domestic monitors as 'Episcopi,' and asserted that their duty was to report, either to the king or the magistrates, everything that happened in town and country—an office which they seem to have filled wisely and with discretion. We may here observe that there must be some confusion in this chronicle of ancient days, inasmuch as Alexander the Great is stated to have died at Babylon in the year 323 B.C., a hundred years before the date usually assigned to the death of Asoka.

But Asoka's pillar has been to us as a talisman, transporting us backward for twenty centuries, to those remote days, which we now hear of as a dream of the past, when Buddhism first arose, and, like a mighty wave, for

a while overspread the whole land. Hinduism is now, however, the chief religion of this north-west province.

The pillar is not the sole representative of diversity of creed that exists within the huge Mohammedan fort, a fort now held by Christians, who have fitted up one of Akbar's buildings as a military chapel, where, we believe, service is held daily. Half-way between this Christian church and the Buddhist pillar there still exists a Hindu temple of exceeding sanctity, though how the Mohammedans came to tolerate its existence within their fort is a marvel quite beyond comprehension. It is a foul temple of darkness, extending far underground, and roofed with low arches. We descended by a flight of dark dirty steps, dimly revealed by a couple of tallow candles; and we followed the old soldier who acted as our guide, and who led us along dark passages, and did the honours of various disgusting idols, stuck in niches, some as large as life, others quite small, but all alike hideous, and all adorned with flowers, and wet with the libations of holy Ganges water, poured upon them by the faithful. The flowers are the invariable large African marigold and China roses.

Each image is generally smeared with scarlet paint, to symbolise the atonement of blood that should be offered daily, but which most of the worshippers are too poor to afford. This substitute for the sacrifice of blood is common all over India, where a daub of red paint administered to the village god is at all times an acceptable act of atonement. These village gods, however, are generally placed beneath some fine old tree, with the blue sky overhead; but this disgusting temple was one which you could not enter without a shuddering impression of earthly and sensual demon-worship.

Here we were also shown a budding tree, supposed to be of extraordinary antiquity; a fiction by no means shaken, though the Brahmins frequently substitute a new tree. So holy is this temple, that when, at one time, all natives were excluded from the fort, one rich Hindu pilgrim arrived, and offered twenty thousand rupees for permission to worship here. The commandant, however, had no authority to admit any one, so was compelled to refuse his prayer, in spite of so tempting a bait. It was with a feeling of thankful relief that we emerged from that noxious and oppressive darkness into the balmy air and blessed sunlight.



We spent some pleasant hours in one of the balconies overhanging the river, while in the cool room within, fair women with musical voices accompanied themselves on the piano, in Akbar's old quarters; and so we idled away the heat of the day till the red sun sank into the water, behind the great dark railway bridge, a bridge which the Brahmins declared the gods would never tolerate on so sacred a river as the Jumna, but which nevertheless spans the stream in perfect security. It was a vast undertaking, as, owing to the great extent of country subject to inundation during the rains, it was necessary to construct a bridge well-nigh two miles in length. The Indian railway has certainly necessitated an amazing amount of work, on a scale so vast as to test engineering skill to the uttermost, and in no respect more strikingly than in the construction of these monster bridges, one of which, across the Soane, is about a mile and a quarter in length, while that on the Sutlej, between Jellunder and Loodiana, is about two and a half miles. On the sandbanks just below the fort, huge mud-turtles lay basking, and the gentlemen amused themselves by taking long shots at them from the balconies, whereupon the creatures rose and waddled into the water with a sudden flop. These sandbanks are favourite haunts of crocodiles—*muggers*, as they are called—which, however, declined to show on this occasion.

Perhaps the pleasantest of our afternoons at Allahabad was one spent in watching the evolutions of the native cavalry, Probyn's Horse, a beautiful regiment, whose graceful dress, and still more graceful riding, were always attractive. On this occasion they were playing the game of Naza Bazi, or the Game of the Spear, when, riding past us singly at full gallop, they with their long spear split a wooden tent-peg driven hard into the ground. Then they picked a series of rings off different poles; afterwards, with unerring sword, cleaving a succession of oranges, stuck on posts, as though they were foemen's skulls. Next followed some very pretty tilting with spear against sword. We had only one fault to find—their strokes were so unerring that they never allowed us the excitement of a doubt! Altogether, it was the prettiest riding imaginable, and a beautiful game, though the practice of suddenly pulling up short, when at full speed, on reaching the last peg, thereby showing off splendid horsemanship, must often injure the good steed. As we watched this beautiful sport, we all agreed in wishing we could see it introduced into England. That wish has since then been fulfilled, and I learn with pleasure that many of our own cavalry have attained such

perfection in this game of skill as to be no whit behind the most accomplished of Indian horsemen.

## A RUN FOR LIFE.

A PRISONER had escaped from Dartmoor Prison. During a dense fog, which had suddenly enveloped a working convict-gang, one of them—a man notorious for being perhaps the most desperate character amongst the many desperate ones there—had contrived to escape, and, for the present at all events, had eluded capture.

It was not a particularly pleasant piece of news for us to hear, considering that we had, attracted by a very tempting advertisement, taken a small house for the summer months not very far distant from the famous prison itself. We were tired of seaside places; it seemed as if we should enjoy a change from our every-day life in London more, if we were in some quiet secluded spot, far from uncompromising landladies, crowds of over-dressed people, and bands of music. Every day we scanned the papers, with a view to discovering something to suit us; and our patience was at last rewarded by coming across the following advertisement, to which I promptly replied: ‘To be let for the summer months, a charming Cottage, beautifully situated on the borders of Dartmoor, containing ample accommodation for a small family, with every convenience; a good garden and tennis-lawn; also the use of a pony and trap, if required; and some choice poultry. Terms, to a careful tenant, most moderate. Apply to A. B., Post-office, &c.’

The answer to my inquiries arrived in due time; and everything seemed so thoroughly satisfactory, that I induced my husband to settle upon taking the place for three months, without a personal inspection of it previously. The terms were two pounds ten shillings a week, and that was to include the use of the pony-trap, the poultry, and several other advantages not set forth in the advertisement. The only drawback—rather a serious one—was that Mr Challacombe, to whom the place belonged, had informed me that it was about three miles from a station. However, with the pony-trap always at hand, even that did not seem an insuperable objection. He expatiated upon the beauty of the scenery; the perfect air from the heather-clad moors; and lastly, requested an early decision from us, as several other applicants for the Cottage were already in the field.

To be brief, we agreed to take it; and on a scorching day in July, our party—consisting of two maid-servants, my husband, and myself, and our only olive branch, a most precious little maiden of three years old—started from Paddington Station *en route* for Exeter, where we were to branch off for our final destination, Morleigh Cottage. The pony-trap was to meet us; and Mr Challacombe had promised that we should find everything as comfortable as he could possibly arrange; and as sundry hampers had preceded us, I had no fears as to settling down cosily as soon as we should arrive.

The journey to Exeter by an express train was by no means tedious; we rather enjoyed it. As our branch train slowly steamed into the wayside station, we seemed to be the only passengers who wished to alight; and presently we found ourselves, with the exception of a solitary porter, the sole occupants of the platform. At one end of it lay a goodly pile of our luggage, which the said porter had in a very leisurely manner extracted from the van.

The pony-trap was to meet us; and as Mr Challacombe had assured us it would not only hold four grown-up people and a child, but a fair amount of *impedimenta*, we were under no anxiety as to how we were to reach Morleigh Cottage.

‘Is there anything here for us?’ my husband inquired of the porter.

‘No, sir; not that I knows of.’

‘From Morleigh Cottage?’ Jack explained.

‘No, sir,’ he repeated. ‘But chance it may come yet.’

‘Chance, indeed,’ I echoed in a low tone. ‘It will be too disgraceful, Jack, if Mr Challacombe has forgotten to desire the carriage to be sent.’

We both proceeded to the other side of the station, and gazed through the fast-falling twilight up a narrow road, down which the porter informed us the pony-trap was sure to come, if it was coming at all—which did not seem probable, after a dreary half-hour’s hopeless waiting for it.

In the meanwhile, we beguiled the time by asking the porter some leading questions with regard to the surroundings, &c., of Morleigh Cottage; all of which he answered with a broad grin on his sunburnt, healthy face.

‘How far is the Cottage from here?’ Jack inquired.

‘Better than six miles.’

‘Six miles!’ I exclaimed!—‘O Jack, Mr Challacombe said it was about three.’

‘It’s a good step more than that,’ observed the porter, with a decided nod of his head.

‘It is a very pretty place?’ I said interrogatively.

‘It isn’t bad, for them as likes it,’ was the guarded and somewhat depressing response.

I felt my spirits sink to zero. I had persuaded Jack to take it; he had suggested that we should go to see it first; but the advertisement had been so tempting, and the idea of the other longing applicants had made me so keen to secure it, that I felt whatever it was like, I must make the best of it, and contrive that Jack at least should not repent of having been beguiled by me into, as he expressed it, taking ‘a pig in a poke.’

‘The pony-carriage is sure to come,’ I said in a confident way, once more straining my eyes up the deserted road. As I uttered the word ‘pony-carriage,’ I detected a distinct grin for the second time on the man’s face, which was presently fully accounted for by the appearance of our equipage coming jolting down the deeply rutted road. Imagine a tax-cart of the shabbiest, dirtiest description, with bare boards for seats, and the bottom strewn with straw; the pony, an aged specimen, shambling along, with a harness in which coarse pieces of rope predominated. It was a pony-*trap*, with a vengeance.

I could almost have cried when it drew up, and I saw Jack’s critical eye running over all its shortcomings. And it was all my fault.

It was too late to recede from our bargain now; all that we could do was to bundle into the horrible machine, and endure as we best could an hour’s martyrdom driving to Morleigh Cottage.

Our groom was a civil boy of about fifteen, clad in ordinary working-clothes. He managed to sit on the shaft or somewhere, and to drive us back, as Jack of course had no idea of the direction; and, judging from the solitariness of the scene, we should not have been wise to depend upon chance passers-by to direct us.

Arrived at last, we found the Cottage was just two shades better than the trap. It was a tiny abode, as desolately situated as it was possible to conceive; the only redeeming point about it being that it was clean.

The next morning, which happened to be a very wet misty one, we surveyed our garden and domain generally. The tennis-lawn was spacious enough, and the garden, to do Mr Challacombe justice, was well stocked; but the place itself was like the city of the dead—so silent, so quiet, so lonely.

But as the weather improved, we got out most of the day, which rendered us very independent of the small low-roofed rooms. Jack and I took long walks, and occasionally we utilised the pony-trap, taking with us our little Rose and her nurse.

We began to think soon of asking some of our relations to visit us; and the first to whom I sent an invitation was an elderly cousin, who resided in London, and who was in rather delicate health. I candidly explained the out-of-the-way nature of the place we were in, but descanted upon the great pleasure it would be to have her, and my entire conviction that the air would do her an immense amount of good. She came; and it was very fortunate for me that she did so, as about three days after, a telegram had reached us requesting my husband to lose no time in returning to town, in consequence of one of his partners being taken ill. It was raining when he left us; and I watched the wretched shandrydan disappear down the road with feelings I could scarcely repress—a sense of foreboding evil seemed to oppress me. I tried in vain to shake it off, but only partly succeeded in doing so. Cousin Susan endeavoured to console me by reminding me constantly that Jack had promised to return in a day or two.

Jack had just been gone for one week, when Rose's nurse, a pleasant girl of about twenty, came to my room and informed me of the occurrence I have already alluded to—'A prisoner had escaped.'

Nothing could have frightened me more, and I was afraid it might alarm Cousin Susan, so I charged Margaret on no account to let it reach her ears. Very likely, even now the man was captured; it was rare, indeed, that a convict ever escaped; but I had heard stories of their eluding capture, until, driven by sheer starvation, they often surrendered themselves to any stray passer-by, to whom the reward might or might not be of some consequence.

That very morning, we had arranged to drive to rather a distant spot to get some ferns. I would fain have deferred the expedition; but Cousin Susan was already preparing for it, so I could only have postponed it by giving my reasons; and the chance of encountering the convict seemed too small to risk terrifying her by telling her of it at all.

It was a lovely morning when we started, and Cousin Susan became quite enthusiastic over the ‘frowning tors and wind-swept moors.’

‘Don’t you admire them, Helen?’ she said.

‘They are very grand,’ I admitted.

‘Oh, so lovely, so wild!’ said Susan.

I was glad she liked them.

The ferns were to be found in a sort of ravine, which was reached by a narrow lane; on one side was almost a precipice, overhanging a streamlet, now nearly dry, but one which the winter rains soon transformed into a torrent; on the other side was a wood, composed principally of stunted oak-trees, with hardly any foliage, and singularly small; but all around the trees was a thick sort of underwood.

We had left Tom the stable-boy with the trap by the roadside, and I had privately resolved not to let my cousin penetrate farther into the ravine than I could help; but she was so charmed with its wealth of rare ferns, that she skipped from one point to another with an amount of dexterity and nimbleness I had never before given her credit for.

‘I do think we might collect quite a hamperful, Helen!’ she said, kneeling down as she spoke to dig up a root most energetically.

‘We had better come another day, then,’ I responded. ‘I don’t want to be late of getting back, so, if you don’t mind just taking a few specimens—when Jack is with us, we can come again.’

‘Now or never!’ gaily rejoined my cousin, little imagining how soon her own words were to be applicable to ourselves. She pounced joyfully upon her ferns, and had collected quite a small heap, when I suggested that we had better tell Tom to tie the pony to a gate, and come up to carry them down for her.

‘O no!’ said Cousin Susan. ‘I will carry them myself. Do help me here just a minute, Helen.’

By this time we were some distance up the ravine; the walk was narrow and winding; we had gone farther than even I had intended. I bent down to give her the assistance she wanted in raising up some lovely lichen from the trunk of a dead tree. As I did so, my eyes wandered some distance from where we were standing towards a fallen tree. I fancied—perhaps it was only fancy—I knew I was in a very nervous state, and apt to imagine, but I fancied I saw a movement just beyond the tree—it was within twenty paces of us. I felt my face grow icy cold; my veins seemed chilling; for a moment I feared I was going to faint. Death must be something like what I felt on that sunny day in August when I stood in the Devonshire ravine with my unconscious cousin. I looked again. There it was more distinctly visible than ever—a line of drab-coloured clothing, and presently a side-view of the most villainous-looking countenance it was ever my fortune to behold. If I could, without alarming her, get my cousin to retrace her steps about ten yards, we should have turned a corner, and then I could tell her enough to hurry her onwards. I knew she was nervous—more so, perhaps, than myself; but I knew we were in imminent peril while in such close proximity to this desperate and, from his very escape, doubly desperate man.

‘Susan,’ I said—my voice seemed so hard and dry and strange!—‘you have passed all the best ferns here.’

‘O no; I haven’t,’ said Susan joyously, approaching two steps nearer the crouching convict.

‘Am I to throw these away?’ I continued, holding out one of her best specimens, and, as carelessly and indifferently as I could, moving one, two, three steps nearer the corner.

‘No; of course not,’ she exclaimed, hurrying towards me now. ‘Why, Helen, what are you thinking of?’

I moved a few more steps on; and in a few more, Susan and I would both be out of sight of that fallen tree.

‘There is a much better one here,’ I said, keeping my face well averted, for I felt if she looked at me she would see its ashy paleness.



‘Where?’ she asked. ‘Wait a minute, and I’ll come for it.’ To my horror, she retraced her steps towards her heap of ferns, and carefully counted them, whilst I waited in a state of terror words cannot describe. But she came at last, and I tottered with her round the fateful corner.

‘Don’t be frightened,’ I said; ‘but come quickly; ask no questions. Do as I tell you, Susan.’

She paused, affrighted. ‘Good gracious, Helen, have you seen a wild beast?’

‘Worse,’ I murmured. ‘Do not run, but lose no time.’

I ventured to glance behind. Nothing was visible; but every moment was precious; we must reach the pony-trap and Tom. Once all together, the convict would surely not venture to attack us, and I knew that being on the high-road, alone would in itself insure our safety. But we had not reached it yet; a long rough narrow path had to be traversed. If the man suspected we had seen him, nothing would be easier than for him to overtake us and make short work of us. I thought of Jack, of Rose, of my happy life. Everything seemed to float through my mind as I half led, half dragged Susan after me. We had gone perhaps a shade more than half-way, when I once more turned round, in the distance, on the path over which we had just passed. To my unutterable consternation, I beheld the convict hurrying towards us.

‘Run, Susan!’ I panted—‘run for your life!’

Another twist in the road hid us momentarily from his sight; but I knew he was after us, running now as fast as, or perhaps a good deal faster than we were, though we were now both of us flying along at a pace which only the peril we were in could have enabled us to sustain.

‘For your life!’ I repeated. ‘Run, Susan!’

I held her hand. Narrow as was the path, we managed to struggle onwards together and to keep ahead of our pursuer. Mercifully, we had had a good start; and it had only been on second thoughts, some minutes after we had disappeared, that the man had elected to follow us. I felt if I once let Susan’s hand go, she would be lost. Ever and anon, she stumbled; once she nearly fell; but she recovered herself well, and though panting terribly, showed no signs of succumbing.

But he was overtaking us; I heard him coming faster and faster, nearer and nearer. I heard him breathing behind us, and I felt another instant and he must be upon us.

‘Help!’ I shrieked.

‘Help!’ echoed poor exhausted Susan, in a still shriller treble.

I heard an oath, awful in its profanity, hurled at us; but the steps seemed to pause.

‘Help! help!’ I shrieked again.

We plunged forwards. I heard as in the distance the sound of horses’ feet galloping towards us. Another moment and we were on the high-road; Susan speechless, her dress half torn off her with our terrible race, her hat gone, and otherwise in a dishevelled condition; I feeling faint and sick—but safe—thank God! both of us quite safe—with not only Tom, seated in the shandrydan, staring in mute amazement at us, but with three stalwart mounted warders, who were even then in quest of the convict.

They captured him an hour afterwards, after a terrific struggle, which was made all the more terrible from the fact of his having possessed himself of a knife, with which he attempted to stab the warders.

Jack came back the next day; and as his partner’s illness had assumed rather a serious aspect, he told me he must give up Morleigh Cottage, and we could finish our holiday at Eastbourne or some place nearer town. ‘I never could leave you here again, my darling,’ he said; ‘after such an escape, I can’t risk another.’ So we all, Cousin Susan included, returned to our cosy house in Seymour Street, and afterwards proceeded to the seaside, where in due time Susan and I both fully recovered from the shock we had received in that Devonshire ravine.

# **FAMILIAR SKETCHES OF ENGLISH LAW.**

## **III. MASTER AND SERVANT.**

THE relation of master and servant depends entirely upon a contract of hiring and service. If the contract is not to be fully performed within the period of one year, it is void if not in writing; and this necessity for a written contract is not confined to cases where the service is intended to be for more than one year. If a servant be hired on Monday for the term of one year, to commence on the following Saturday, the contract ought to be in writing, as a verbal contract would be void on the ground indicated above—namely, that it was not intended to be fully performed within one year from the date on which it was entered into. If, however, the service was to commence on the Monday on which the verbal contract of hiring was entered into, no such objection would arise.

Assuming that a valid contract is entered into, there are still some peculiarities attached to certain kinds of service, which do not affect others. Thus, in England, both domestic servants and agricultural labourers are usually engaged for a year; but the former class may put an end to the engagement at any time by giving one month's notice; while the latter are irrevocably bound for the entire year, unless the hiring be determined by mutual consent. This difference is founded upon universal custom, which has the force of law. Probably the custom had its origin in early ages, and was founded upon considerations of convenience. The work of an agricultural labourer is distributed very unequally over the year, being much more heavy at some seasons than at others; and therefore it is reasonable that a man who receives wages by the year should not be allowed to take his money for the light season, and leave his situation when the work is heavier. Domestic servants, on the other hand, have their work more evenly distributed over the entire year, although they also have sometimes to do more work than at other times, but not to the same extent as agricultural labourers; and being brought into more immediate contact with their master's family (especially the mistress), it might in many cases be very unpleasant to be obliged to carry into full effect the hiring for a whole year.

Hence, either master or mistress on the one hand, or domestic servant on the other, may at any time give 'a month's warning,' and so dissolve the engagement. In Scotland, domestic servants are generally hired for a month or for 'the term,' which is half a year, but agricultural labourers for a year, as in England.

The more highly paid class of servants, such as managers, cashiers, clerks above the grade of copyists, &c., are generally engaged for an indefinite term, subject to three months' notice. Such an engagement as this, although it may possibly continue for several years, need not be in writing, because it may be dissolved within the year; and it is only when a contract which is entire and indivisible cannot be fully performed within that time, that writing is necessary. It is, however, desirable that the terms of the engagement should be in writing, for the sake of certainty and in order to avoid misunderstanding. Copying-clerks, journeymen, and persons occupying positions of a similar kind, are usually subject to one month's notice. In all cases, the obligation as to notice is reciprocal, and equally binding on both parties, mutuality being essential to the agreement. There is, however, one distinction which has a substantial reason for its existence: a master may pay his clerk or manager three months' salary, or his journeyman or copying-clerk one month's salary, and dismiss him immediately; but the servant must give the proper notice, and cannot throw up his engagement by sacrificing salary in lieu of notice. The reason for this is obvious: if a clerk gets his salary without working for it, instead of working out his notice, he is not in any way injured, but may be benefited by the prompt dismissal; for he may obtain an engagement elsewhere before the time when the notice would have expired. But it would be difficult to estimate the loss which might be sustained by a master in consequence of the sudden withdrawal of a confidential clerk or manager. For any breach of contract an action of damages will lie at the instance of either party, and the measure of damages will be the probable loss to the servant before he can find a new situation, or to the master before he can find a new servant.

Whenever a person is hired without any stipulation as to notice, the engagement will be subject to any custom which may exist in the particular trade or business for which he was engaged. In some branches of business, commercial travellers claim to be engaged absolutely by the year, and this custom has been proved and allowed in court; a traveller obtaining a verdict

for the balance of his year's salary, when he had been dismissed in the middle of the year. Ordinary labourers, engaged by the week, are only entitled to one week's notice; but miners are by custom required to give, and are entitled to receive, fourteen days' notice.

Gross misconduct on the part of the servant is in all cases a sufficient reason for dismissal without notice; and generally, if the misconduct be sufficient to justify this extreme course, the wages actually earned by the offender are forfeited, and he or she cannot recover the same by legal proceedings. A manager who imparts his master's secrets to a rival in business; a cashier who cannot account for the cash intrusted to his care; a journeyman who recklessly destroys any of his master's goods—may all be summarily dismissed. So also may any kind of servant who persistently disobeys his master's orders, or frequently absents himself without leave. A female domestic servant who without reasonable cause stays out all night, or who is known to be guilty of immorality, is within the same category. It is scarcely necessary to add that any dishonest act by a servant, such as misappropriating his or her master's money or goods, ought to be followed on detection by immediate dismissal, even though it may not be thought necessary or desirable to prosecute the servant.

In the absence of any special agreement on the subject, a servant cannot be compelled to make good the loss occasioned by accidental breakages; and any deduction from the salary or wages earned in respect of such breakages would be illegal, unless the master were to establish a claim for reparation in respect of fault or gross negligence; just as in the case of a lawyer or a doctor who has bungled the duty intrusted to him through want of skill or due care.

The death of the master terminates the contract. In England, the servant may be paid wages up to the time of his master's death, if the executors do not retain his services, which would amount to a new hiring so far as relates to notice; but in Scotland he is entitled to be paid wages and board-wages up to the end of his engagement, unless a new situation should in the meantime be procured for him either by himself or the executors. He is at anyrate entitled to be kept free from loss, because he was ready to fulfil his part of the contract.

On the bankruptcy of the master, each clerk or servant, labourer or workman—if the assets be sufficient—is entitled to be paid in full the salary or wages due to him in respect of services rendered to the bankrupt during four months before the date of the receiving order, if the amount do not exceed fifty pounds, before any dividend is paid to ordinary creditors. For any excess, the servant must rank against his master's estate as an ordinary creditor, with whom he will rank for dividend thereon. This right of priority is, however, subject to the right of the landlord to distrain for the rent due, not exceeding a twelvemonth, and is shared with the collectors of rates and taxes within certain specified limits. If the net amount of assets in hand, after paying expenses, should be insufficient to cover the preferential payments, the money must be divided among the parties entitled, by way of preferential dividend. In Scotland, the farm-servant's claim for wages is preferable to the landlord's claim for rent.

A master is liable for any damage done to the property of strangers by his servant in the course of his ordinary employment, but not otherwise. For example: a groom who is sent out by his master with a horse and carriage, and drives so negligently as to injure another person's horse or carriage, renders his master liable to an action for damages. An engine-driver who disregards a danger-signal, and causes a collision, involves the Railway Company in a liability for reparation to every passenger who may be injured. But a master is not liable if the servant act beyond the scope of his employment; if, for example, the groom were accidentally to wound a passer-by with the gamekeeper's gun, or even if the gamekeeper himself were voluntarily to wound a poacher, unless it were proved that he was actually ordered by his master to do it.

Before January 1, 1881, a master was not liable to an action for damages in respect of any injury sustained by any person employed by him through the negligence of a fellow-servant; though he might be held responsible if the accident which caused the injury were caused by his own negligence. But the law has been altered, and a workman is now entitled to compensation for accidental injury sustained by reason of the negligence of any foreman or superintendent in the service of his employer; or of any person whose orders the workman was bound to obey; or by reason of anything done in compliance with the rules or bylaws of the employer, or in obedience to particular instructions given by any person duly authorised for that purpose:

or in the case of railway servants, by reason of the negligence of any signalman, pointsman, engine-driver, &c. But the right to compensation is not to arise in case the workman knew of the negligence which caused the injury, and failed to give notice to the employer or some person superior to himself in the service of the employer; nor if the rules or bylaws from the observance of which the accident arose had been approved by the proper department of the government; neither would a workman who by his own negligence had contributed to the accident be entitled to compensation: the common-law rule as to contributory negligence being applicable. In case of any accident which is within the provisions of the Act, notice of the injury must be given to the employer within six weeks, and any action must be commenced within six months after the occurrence of the accident; or in case of death, proceedings must be taken within twelve months from the date of death. The compensation must not exceed in amount three years' earnings; and the action must in England be brought in the County Court; in Scotland in the Sheriff Court; and in Ireland in the Civil Bill Court; the proceedings in each case being removable into a superior court at the instance of either party. The benefits of the Act do not extend to domestic or menial servants, but are available for railway servants, labourers agricultural and general, journeymen, artificers, handicraftsmen, and persons otherwise engaged in manual labour.

In case of the illness of a servant—unless such illness be caused by his or her own misconduct—the master cannot legally refuse to pay the wages which may accrue during the time of such illness; but the service may be terminated by notice in the usual way; the principle being that no man can be held accountable for what is beyond his own control. The servant being willing to do his duty, but rendered unable to do so by circumstances beyond his own control, he must not be punished for such inability by being deprived of his wages. A master is only liable to pay his servant's medical attendant when the master has employed him, but not when the doctor is employed by the servant himself.

A master may bring an action against a stranger for any injury done to his servant, whereby he (the master) suffers loss or inconvenience, or for enticing his servant away, and inducing him to neglect or refuse to fulfil his engagement.

When a servant applies to any person for a new engagement, it is usual for him to refer to his previous master for a character, as it would be objectionable for a stranger to be employed without some means of knowing whether he was competent and respectable. In answering inquiries as to character and ability, it is necessary to be very careful to say neither more nor less than the exact truth. If an undeserved bad character be given, the servant may recover damages, on establishing malice and want of probable cause, in an action for libel or slander, according to the mode in which the character was given, in writing or verbally. On the other hand, suppression of unfavourable facts may have still more serious consequences. If a servant be known to be dishonest, and his master ventures to recommend him as trustworthy, he will render himself liable to make good any loss occasioned by subsequent acts of dishonesty which may be committed by the servant in his new situation, and which without such recommendation could not have been committed. When nothing favourable can be said, the safest way is to decline to answer any inquiries on the subject. But it would be unfair to adopt this course without adequate cause, for such refusal would inevitably be construed as equivalent to giving the servant a bad character, and would frequently prove an obstacle to his obtaining another situation.



## HEROINES.

MOST of us have heard of a certain thoughtful little girl who took Time by the forelock, and decided that if women must have some profession to turn to, she would be a Professional Beauty. There are thousands of girls, older and wiser, who yearn to be heroines, and have quite as vague notions about it. There are countless women, with characters still fresh and plastic, who find existence but a dull level. Life is a narrow lane to them. They would like mountaineering. They want adventure. They sigh to be heroines.

What are heroines, after all? Let us look for the reality, and not for a dream, or we shall go mountaineering, and be lost among shadows when the darkness of age begins to fall. In the real life we are all living, how does one get to be a heroine? Are there any, and where are they? Who shall tell us? Can the novelists? For the most part, no. The ordinary sort of fiction is full of ambitious flecks and flaws; how can it know and describe the most delicate and intricate, the most minutely beautiful of human characters? There is a novel in which the hero exclaims pathetically that he was 'a Pariah' until he married. Could the inventor of the Pariah invent anything but a heroine to match him? The fiction that excels in the highest qualities falls short here. The best describer of life, even if his conception of this character be perfectly just, must be content with merely hinting it, for his space has limits. Instead of describing in half a page the colour of eyes, hair, and dress, and afterwards ten adventures and two dozen conversations, he could hardly be expected to write for one character a whole shelf of detailed volumes, and to gather his notes with the minuteness of a census-taker.

Let us look elsewhere. Several women have passed the old turnstile to public life, and got in somehow on men's tickets. Their insignificant sisters peep over the wall, and observe that men who outside were the soul of chivalry, begin to elbow the ladies within, and ungallantly assert in self-defence that the ladies have elbows too. The insignificant sisters will not enter; but if they tried to reason about it, they would be 'stumped out' in a moment by the others on the platforms inside. 'When I hear a woman use intellectual arguments, I am dismayed,' says a wise thinker from beyond the

Atlantic; and the insignificant crowd aforesaid and the majority of the world agree with him in this; and those outside the wall find out all at once that a woman's unreasoning nature is no insignificant charm. 'Her best reason, as it is the world's best, is the inspiration of a pure and believing heart. She is happiest when she devotes herself, obedient to her patient and unselfish nature, to some loved being or high cause; and glory itself, says Madame de Staël, would be for her only a splendid mourning-suit for happiness denied.'

Shall we turn from the platforms, and look to intellectual culture? We see at the outset that it cannot be necessary to heroism; for all human nature's highest prizes are open to all, and great intellectual culture belongs to the few. Besides, there can be such a thing as learning too much, and knowing nothing worth knowing. In America, where life is lived double-quick, and where every product from a continent downwards is of the largest size, there are crops of overtaught girlhood ripe already for our inspection. Women of the middle classes there can discuss the nebular hypothesis or the binomial theory, as ours talk of lacework and the baby. Mr Hudson, in his recent *Scamper through America*, declares that to converse in the railway cars with ladies returning from Conventions and Conferences was a genuine pleasure, an intellectual treat. But he adds, that though one could revere them, almost worship them, to love them was out of the question. 'Practical passionless creatures, they seemed to constitute a third sex. Where were the girls? We never saw them. We did meet with young ladies of twelve and thirteen, with jewel-laden fingers, and with vocabularies of ponderous dictionary words; but, like their mothers and elder sisters, they were such superior beings, that one longed for a lassie that was not so very clever—one who had something yet unlearned that she could ask a fellow to tell her about.'

We have failed in the novels, on the platforms, and at the learned Conferences. Shall we carry our search to the haunts of human suffering next? There are hundreds of women, banded together or working singly, to whom every form of sorrow and helplessness is an attraction. They do not deal in dry statistical philanthropy, but in loving compassion. They are not 'women with a mission,' because the woman with a mission flaunts it before the world, and gets more or less in everybody's way; but these desire to remain unknown, never counting the debt humanity owes to them. The wounded soldier on the battlefield knows them well enough; and the

criminal in prison; and the sick, the poor, the aged, the young children. Sacrificing a whole life to the common good, they are heroines; it is beyond doubt. But not the heroines we seek, whose sphere is to be something more homely, easy, and attainable for all. However, these women, whose lives are compassion, have given a light upon the track. It dawns upon us, that in womanly heroism, self-sacrifice is the essence, and hiddenness marks it genuine.

Far different is the typical woman with a mission, whose type, dashed off with a few strokes by the pen of Dickens, flits across our memory from *Bleak House*, and provokes a sigh and a smile. Again, Mrs Jellyby, with her dress laced anyhow like the lattice of a summer-house, is writing in a room full of disorder, with her philanthropic eye fixed upon the savages of Borrioboola, South Africa, while her own little boy is outside, kicking and howling, with his head stuck between the area railings. Again, Mr Jellyby employs his evenings in leaning his head feebly against the wall; and when poor Caddy is married, we hear him giving her all he has to give—the beseeching advice: ‘My dear, never have a mission!’

Even Mrs Jellyby may help us in our search, by sending us flying in the opposite direction. We have had light on our path—hiddenness is the seal, and unselfishness is the essence, and we are searching for the heroines of home. Their distinction does not depend, as in fiction, upon adventures, lovers, or beauty. If it did, they could be heroines only till the end of youth and volume three; but in the real world they shall be heroines not only till the time of gray hairs and careworn brow, but for ever and a day.

There is nothing in creation more beautiful than a true heroine, and nothing so hard to find. Not that they are scarce. They crowd the world as daisies dot the summer fields. But they are hidden, and hidden precisely where a thing wanted is most unlikely to be found—too close to us, just straight before our eyes. Not in the world of romance, or in the crush of public life, or in the clear cold air of science; but in the narrow lane where we started, in the monotonous routine of common daily life, that seems to be hedged in from all interest—there are the heroines to be found. Their heroism is made up of trivial details, the shabby atoms of uneventful life. If it be objected that the heroic means something greatly above the ordinary level, we would answer, that their whole life is above the level; that the essence of heroism—sacrifice—has become to them an unconsciously acting second nature,

and that all that is life-long is surely great. But sometimes trivial incidents can become in themselves heroic. Whoever heard in a novel of heroism with a crushed thumb? All the finest things are true. It is told of the late Viscountess Beaconsfield, that on the night of an important speech by her husband, then Mr Disraeli, when they were seated in the carriage together to drive to the House of Commons, the servant closing the door, crushed her thumb. She uttered no cry, left the bruise untouched, and acted and spoke as if she was at ease. Hours after, when she descended from the Ladies' Gallery, he discovered the agony she had been enduring, in order not to spoil his speech; and in after-years, when the Viscountess was dead, he still told the touching little story in her praise.

But to return to our heroines of commonplace life. Their greatness does not even need striking incidents. Their worth makes precious those trivial atoms of which life is composed, and what began as an unpretending patchwork, ends as a complete and precious picture, like the splendid mosaics of Venice or Rome. This is why one might defy the first of novelists to describe the loveliness of such a life; its daily parts are positively too small to pick up.

For each one of us there is some face enshrined in memory, whose influence is lofty as an inspiration, whose power is a living power, whose love has been stronger than death, and will light an upward path for us even to life's end. Why is all this but because she whom we loved was a heroine? And what were her characteristics? One answer will serve for all—Tenderness, gentleness, self-forgetfulness, suffering. The last characteristic may not be universal, like the rest. But the highest love can only exist where suffering has touched the object loved. It is one of the compensations for the manifold sorrow of this world of ours. The fire of trial seems to light up every beauty and attraction. The life that not only loved much but suffered much has a royal right of influence as long as memory lasts—an influence which cannot belong to any life which suffering has not crowned.

Now we have sketched our heroine, easily recognisable, but herself never dreaming or caring to think that she is one, or her glory would be frail as a bubble. The poorest woman knitting on her cottage threshold can have this glory for her own; for there is no true-hearted woman, rich or poor, who cannot walk her simple life lovingly enough to leave enshrined for others, as a living influence, such a memory as we have described. And what sceptre has so sweet a power as that—an immortal influence through the

hearts we have loved most? Compared with this, what is fame but an echo,  
and what is the heroism of romance but an unreal shadow!

## ARMY SCHOOLS.

THE valuable advantages these institutions offer to soldiers and their children will, we trust, be evident from the perusal of the following short account of their organisation. With regard to children, these schools will soon have little to do; for the new system of short service promises to do away almost entirely with the married soldier. A soldier is not allowed to marry till he has served seven years, subject to certain qualifications of good conduct; but as the great majority of men are passed into the Reserve before they reach that length of service, the proportion of married soldiers is very small, and rapidly becoming more and more reduced in number. It is rather with the men themselves, therefore, that the military schoolmaster and his assistants have now principally to deal.

Every regiment or dépôt has its school. The schoolmasters are trained at Chelsea; and though non-combatants, they are subject to the usual army regulations. They now rank as warrant-officers, and, on the whole, are an able and estimable body of men. Occasionally, educated and promising young soldiers are selected from the ranks and sent to the training college to qualify as schoolmasters. Their number is, however, very limited; the great majority of the schoolmasters enter the army through the college, joining it as civilians; consequently, a schoolmaster cannot be reduced to the ranks. If he misconduct himself seriously, he is liable to be tried by court-martial and dismissed. Such cases are very rare. The army schoolmaster retires with a pension on attaining twenty-one years' service, though, under certain conditions, it is possible for him to prolong his engagement. If of more than ordinary ability, he is often promoted to the higher rank and more important position of Sub-inspector of Army Schools.

Assistants are allowed in these schools according to the numbers in attendance at them. There is usually one school-assistant to about every twenty men or children attending. In dépôts, where the soldiers are mostly recruits, the attendance is often very large, with a correspondingly increased number of assistants. The latter are picked out from among the better-educated men in a regiment; they receive extra pay, and are exempt from

the ordinary drill and duty of the rank and file, giving their time and attention to the working of the school and the details connected with it. Many well-educated men, who are not otherwise well suited for non-commissioned officers, are employed in this way in imparting instruction to their more illiterate comrades.

Every recruit on joining a *depôt* has to attend school until he satisfies an examiner—sub-inspector—of his familiarity with certain elementary subjects. Examinations for this purpose are held at intervals. There are four classes of certificates granted to candidates on passing the necessary examinations. Supposing a man to be competent to pass the fourth or lowest standard, he becomes exempt from further school attendance. But if ambitious of being made a non-commissioned officer, or of securing one of the other good berths, of which there are many open to intelligent men, it is advisable for him to hold on till he gains a higher certificate. For example, to be promoted to the rank of corporal, the aspirant must be in possession of a third-class certificate; to attain to a sergeant's position, he must have one of the second class. Thus, a considerable proportion of the men in a regiment are kept under instruction; and as soon as one batch has been passed out of the school, other candidates appear. A few unfortunates, entirely destitute of education when they enlist, are often long in obtaining the desired certificates. After a year or two's attendance, they are probably dismissed from school as 'useless.' Such hopeless ignoramuses—happily not so numerous now as formerly—are a bugbear to the school staff: they soon cease to make any attempt to learn, and are simply in the way of the more intelligent or persevering men. Of course, to such, the school-work is a species of punishment. But let us glance at the quantity and quality of the learning implied in obtaining the certificates.

To satisfy the examiner, the entirely uncultured youth has in the first place to set himself resolutely to learn to read. Then he must be able to write to the extent of transcribing a few lines from a book. With the mysteries of the four elementary rules of arithmetic he must display a tolerably intimate acquaintance. To men who can already read and write, the latter does not prove an insuperable obstacle. Having furnished a moderately good 'paper' on these not very exacting subjects, he in a few days receives his fourth-class certificate, and leaves the school in triumph. But if he aspires to a third-class certificate, a man of this kind has yet much to do. As a matter of

fact, very few attempt more from mere love of self-improvement; an eye to advancement in the ranks acts as the stimulus to further study. Writing fairly well to dictation is a part of this next higher step, and often proves a serious difficulty. Arithmetic will include the compound rules and reduction; and on a man passing this standard, a third-class certificate is granted. The possession of this qualifies the holder for the rank of corporal. But to the corporal, further promotion is necessary. No corporal would go to so much trouble, besides having to perform the ordinary duty attached to his rank in regimental affairs, except as a step towards the coveted chevrons of the sergeant. To attain sergeant's rank may be taken as the aim and ambition of all corporals; and the latter are the men who, as we have seen, try to get the third-class certificates. But a sergeant must, by the regulations, have a second-class certificate. To the comparatively untutored corporal, this object entails his continued use of the school, and an increased demand of the schoolmaster's instruction. In short, to a man whose education has been more or less neglected in early youth, this second-class test is a pretty stiff one; it requires a considerable amount of application for a time before he can present himself for examination with a reasonable chance of passing. He must be able to write fluently and correctly a moderately difficult passage to dictation; and take down military orders with due care to arrangement and spelling. A long list of terms connected with military matters—such as 'commissariat,' 'aide-de-camp,' 'manœuvre'—has to be written and spelt correctly. The arithmetical part of the examination consists of the ordinary rules as far as and including decimals. Besides, he must be able to work out a debt and credit account, a military savings-bank account, and a mess account. Withal, he must read with fluency, and write a good legible hand. Such is the necessary scholastic attainment of the modern sergeant. The ordeal would probably have terrified his predecessors of a quarter of a century ago.

There remains still the certificate of the First class. This is obtained by a comparatively small number of men. It enters into details which would be, to many, insurmountable difficulties; and as the possession of it is not compulsory for any non-commissioned rank, it is not much sought after. A few of the originally better-educated men do, however, go in for it. As a passport to the higher grades of clerkships, or even to eventual commissions, it is desirable. The examination includes an extra subject,



such as a language, or geometry; the whole of arithmetic; and a searching test as to spelling and composition.

The reader will see that, from the above description, the second-class certificate is the important one to possess. Men having got it, are available for all the higher kinds of non-commissioned officers, as colour-sergeants, sergeant-majors, &c. The work of preparing men for this is perhaps a very important part of the business of the school, and is generally undertaken mainly by the schoolmaster himself.

In an army school the men are divided into classes according to their several abilities or stages of advancement. A special class is usually composed of men preparing themselves for the next examination for sergeants; another lot looking forward to being made corporals are engaged in the necessary work for third-class certificates. Then there are still more elementary classes for men trying to get themselves exempted from school attendance by passing the fourth class; and lastly, are the complete 'ignoramuses' who are labouring at the alphabet or assiduously making pot-hooks. The duration of the daily attendance is from an hour to an hour and a half; but other duties frequently break in upon this, and men are not able to be present every successive day. As attendance is compulsory, the men are paraded and marched to school as for any other duty; but the room is open in the evening for those anxious to push on with their work—the latter being, so to speak, volunteers, and nearly all non-commissioned officers. From this it will be seen that men really desirous of picking up a serviceable education have ample opportunity of doing so, especially when we consider the large share of spare time which the soldier has in ordinary circumstances on his hands.

All the schools are furnished with maps, books, and everything essential for carrying on their work. Where there are children, they are supplied with these requisites. Children, however, from being at one time the more important, have now become a secondary element in army schools. The present writer was connected with a school having an average attendance of two hundred men, but no children. This was in a dépôt, and the men were almost without exception recruits. A small number of children in barracks were sent out to the Board School, leaving the school staff to devote its whole attention to the adults. At one time several regiments would have been required to furnish such a numerously attended school as the above,

when recruits came in at the rate of perhaps about twenty annually. But short service has filled regiments up with recruits, or at least with very young soldiers, which, together with other circumstances, has given more ample employment to the schoolmaster. If we compare the number of recruits who join a regiment with that of the certificates of education granted in the same corps, we speedily find that the school department has not been asleep; and especially is this the case when we consider what is the educational standard of most men who enlist. We hear a good deal from time to time concerning the superior class of men that now seek to enter the army; but, practically, from an educational point of view, recruits are not so very different from what we have seen for many years past. It will yet be long before the army schools are abolished.

Among some statistics, we lately noticed some figures relating to the standard of education of soldiers. In this statement, a large percentage—fifty-seven per cent. of the whole rank and file—was set down as of ‘superior education.’ This probably referred to the men in possession of the two highest kinds of certificates, as holders of the third class could hardly be included under such a heading. The reader may perhaps be inclined to smile at the use of such a high-sounding term; though that such a large proportion of the ranks are educated even to this degree appears on the whole to be very creditable indeed. It certainly offers a marked contrast to the state of affairs at no very remote period.

## **LIGHTING COLLIERIES BY ELECTRICITY.**

This interesting and important experiment has just been tried with great success at the Park Pit Ocean Collieries, South Wales. The arrangement consists of a number of Swan incandescent lamps distributed throughout the workings, both under and above ground, in the workshops and engine-houses. The bottom of the mine is thus admirably lighted, and the whole of the workings as far as the main engine roads. The power is supplied by a six horse-power Marshall engine, fitted with Hartnell's patent automatic expansion gear, driving a Crompton-Bürgin self-regulating dynamo.

We believe we are correct in stating that this is the first attempt to illuminate the whole of the interior of a colliery pit, and its workings and offices, by this useful medium; and it is impossible to over-estimate the value of an incandescent light, and yet one of extraordinary brilliancy, in such a place as a coal-mine, subject to the escape of gases which are liable at any moment, on coming in contact with an unprotected flame, to occasion an explosion involving terrible and deplorable consequences. Now, this is one source of danger which the use of this system of lighting prevents; and if this is found to succeed, it is to be hoped that it may be adopted in all underground works, where the advantage of a brilliant light to work by is recognised; a marvellous contrast to the safe but gloomy and light-obstructing 'Davy.' There can really be no reason why this plan should not be universally applied to mines, unless the objection may be on the score of expense, for when once the necessary driving-machinery is built, the rest is simple enough, and the advantages almost untold.

## A LAST 'GOOD-NIGHT.'

LOVE, I see thee lowly kneeling,  
Claspèd hands and drooping head,  
While the moonbeams pale are stealing  
Sadly round my dying bed.  
Dearest, hush thy bitter weeping;  
Lay thy tearful cheek to mine,  
While the stars, their death-watch keeping,  
Softly through the lattice shine.  
Through the trees, low winds are sighing,  
And my hand, so worn and white,  
On thy clustering hair is lying.  
Love, my only love, good-night!

Ah! I hear thy broken sobbing.  
Faint and low, thy voice hath grown;  
And I feel thy fond heart throbbing,  
Oh, how wildly, 'gainst mine own!  
Dear, my spirit still delaying,  
Loves to hover near thee now,  
Like the moonbeams fondly straying  
O'er thy pallid cheek and brow.  
Yes, my soul, to share thy sorrow,  
Pauses in its heavenward flight,  
And will comfort thee to-morrow.  
Love, my dearest love, good-night!

Now, for one sweet moment only,  
Fold me closely to thy breast.  
When thy life seems dark and lonely,  
Oh, remember I am blest!  
Though thy voice with grief be broken,  
Smile once more, and call me fair.  
Darling, as my last love-token,

Take this little lock of hair.  
Feeling these, thy last caresses,  
Tears must dim my failing sight.  
Kiss once more my wandering tresses,  
Then a long, a last good-night!

Shades of death are round me closing;  
Tears and shadows hide thy face;  
Still I fear not, thus reposing,  
In thy faithful, fond embrace.  
Though thou lingerest broken-hearted,  
All thy thoughts to me shall soar;  
We shall seem but to be parted;  
I'll be near thee evermore.  
Brightly on my soul's awaking,  
See, yon gleam of heavenly light!  
Now, behold the morn is breaking.  
Love, my faithful love, good-night!

FANNY FORRESTER.

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**FOOTNOTES:**

[\[1\]](#) See article ‘The Isle of May and its Birds,’ in *Chambers’s Journal* for September 22, 1883.

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